

TENTATIVE RULING(S) FOR June 17, 2026

Department S37 – Judge Winston Keh

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2402797

County v. Turtle Cove Marina

TENTATIVE RULING(S):

Plaintiff San Bernardino County's Motion to Compel the Deposition of Defendant Turtle Cove's PMK. Defendant Turtle Cove opposes. Plaintiff County relies.

Meet and Confer

The County seeks to compel Turtle Cove's deposition under Code of Civil Procedure section 2025.450, subdivision (a). However, section 2025.450 is inapplicable because Turtle Cove served a timely objection to the deposition notice. Therefore, the County's motion is best subject to Code of Civil Procedure section 2025.480, which requires a declaration that complies with 2026.040, subdivision (a). The County did not provide the required declaration.

The County's declaration does not provide facts to show it made "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).)

Although the County failed to properly meet and confer, the Court elects to consider the merits of this motion to prevent the need for any further law and motion on this issue.

Merits

The County argues that Turtle Cove's deposition must be compelled because it properly noticed the deposition, the deposition sought testimony on relevant topics, and Turtle Cove failed to appear.

In opposition, Turtle Cove argues that the County's motion should be denied because Turtle Cove timely objected to the deposition notice and that it was working to identify and prepare a new individual to testify. When it identified the alternate person most knowledgeable, after the County's motion was filed, Turtle Cove offered the County dates for the deposition to go forward but the County did not respond. (Grijalva Decl. Exh. I.)

In reply, the County argues that Turtle Cove's objections did not excuse its attendance at the deposition on January 20, 2026, that Turtle Cove's offers to produce a deponent do not render the County's motion moot, and that the County cannot go forward with Turtle Cove's deposition because Turtle Cove has not yet produced documents it was ordered to produce on May 7, 2026.

The County's argument that Turtle Cove's objections did not excuse Turtle Cove's non-appearance is without merit. Turtle Cove timely objected and stated that it and its counsel were unavailable on the date set and made it clear that it was not going to appear. At that point, the County had an obligation to meet and confer, in good faith, by telephone, video conference, or in person, to resolve the objections and to obtain a new deposition date. (Code Civ. Proc., §§ 2025.480, subd. (b), 2016.040, subd. (a).)

Further, the County's argument that it cannot now take the deposition because Turtle Cove has not yet complied with a separate discovery order is improperly included in the reply. To the

extent the County believes Turtle Cove is not in compliance with a separate court order, the County can bring an appropriate motion addressed to that issue.

Given that there is no dispute that Turtle Cove's deposition should go forward, and that Turtle Cove has offered deposition dates, the Court ORDERS the parties to meet and confer in the next 5 days to come to a mutually agreeable date for the PMK's deposition within the next 30 days.

Sanctions

The County seeks \$2,193.50 in sanctions reflecting 10.7 hours of attorney time. The attorney time consists of 7.2 hours to prepare the motion, 3 hours to review the opposition and prepare the reply, and .5 hours to appear at the hearing at a billing rate of \$205. (Okada Decl. ¶ 13.) Given the death of Turtle Cove's person most knowledgeable and the County's failure to comply with its meet and confer obligations, the Court DENIES the County's request for sanctions as unjust under the circumstances.

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CIVSB2430096

Burgett vs Redwood Private Security

TENTATIVE RULING(S):

Before the Court is Defendant Fortes' Motion to Strike portions of Plaintiff's Complaint, relating to the allegations and prayers for punitive damages. Fortes specifically seeks to strike the following on the grounds that the Complaint contains conclusions, not factual assertions sufficient to establish oppression, fraud, or malice:

- 1) Plaintiff's prayers for punitive damages as stated in the Complaint, page 8, numbers 1(c), 2(c), and 3(c), lines 1, 7, and 13, reference to "for punitive and/or exemplary damages in an amount appropriate to punish Defendant and deter others from engaging in similar conduct."

- 2) Complaint, page 3, para. 15, lines 24-27, reference to “Defendant JOHN DOE aggressively approached Plaintiff, leaning forward and getting within inches of his person, and in a loud bellicose manner threatened to touch and/or grab Plaintiff in a harmful manner such that it reasonably appeared that Defendant JOHN DOE was about to carry out the threat.”
- 3) Complaint, page 4, para. 19, lines 8-12, reference to “Defendant JOHN DOE’s malicious and oppressive despicable conduct set forth above was intended to cause injury to the Plaintiff and subjected the Plaintiff to cruel and unjust hardship with a willful and conscious disregard for the Plaintiff’s rights and safety such that defendant are subject to punitive damages as set forth in California Civil Code § 3294.”
- 4) Complaint, page 5, para. 25, lines 1-5, reference to “Defendant JOHN DOE’s malicious and oppressive despicable conduct set forth above was intended to cause injury to the Plaintiff and subjected the Plaintiff to cruel and unjust hardship with a willful and conscious disregard for the Plaintiff’s rights and safety such that defendant are subject to punitive damages as set forth in California Civil Code § 3294.”
- 5) Complaint, page 5, para. 31, lines 22-26, reference to “Defendant JOHN DOE’s malicious and oppressive despicable conduct set forth above was intended to cause injury to the Plaintiff and subjected the Plaintiff to cruel and unjust hardship with a willful and conscious disregard for the Plaintiff’s rights and safety such that defendant are subject to punitive damages as set forth in California Civil Code § 3294.”

Plaintiff opposes the motion to strike. Defendant replies to the opposition.

MERITS OF THE MOTION

Defendant Fortes argues that Plaintiff fails to plead “specific facts” rather than mere legal conclusions and assumptions. He states the allegations in paragraphs 15, 19, 25, and 31 of the

Complaint do not satisfy the higher pleading requirements of Code of Civil Procedure section 3294. And he states that Plaintiff does not allege facts sufficient to show requisite “evil motive” to support a punitive damages claim. Fortes thus seeks to strike out any irrelevant, false, or improper matter inserted in the Complaint or strike out any part of the Complaint not drawn or filed in conformity with the laws of this state. (Code Civ. Proc., § 436, subds. (a)-(b).)

Plaintiff, in turn, argues that punitive damages are sufficiently alleged in the Complaint. This is because Plaintiff alleges that Defendant Fortes approached Plaintiff in his parked car and demanded he exit; Plaintiff complied; Defendant Fortes immediately and violently assaulted Plaintiff, causing injury; Defendant’s Fortes’ conduct was threatening, aggressive, and outrageous, far beyond what is tolerated in a civilized community; and such conduct was both despicable and carried out with a willful and conscious disregard for Plaintiff’s rights. Plaintiff also relies on *Perkins v. Superior Court (General Telephone Directory Company)* (1981) 117 Cal.App.3d 1, 6-7 (“*Perkins*”), where the Court of Appeal held that a motion to strike conclusory language in a punitive damages allegation must be denied, where read in context, the facts alleged describe a malicious state of mind. The *Perkins* Court stated: “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (*Id.*, at p. 6.) And it also stated that: “The word ‘retaliation’ in paragraph 10 of the complaint describes defendants’ motive for shutting off petitioner’s home phone service -- a motive which, if proven, would sustain a finding of malice. The allegation that defendants were guilty of ‘oppression, fraud, and malice’ simply pleaded a claim for punitive damages in the language of the statute authorizing such damages. (Civ. Code, § 3294.) *Pleading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation.*” (*Id.*, at pp. 6-7, emphasis added by Plaintiff and footnote omitted.)

In the reply, Fortes reiterates that Plaintiff’s conclusory statements are not sufficient to support the claim for punitive damages. And he argues that to be legally sufficient, a complaint seeking punitive damages must allege specific facts that manifest an evil motive on the part of the defendant to injure the plaintiff.

Here, Plaintiff's prayer for punitive damages is sufficiently supported by the allegations in the Complaint as "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson, supra*, 67 Cal.App.4th 1253, 1255.) There is no need at the pleading stage that Plaintiff prove by clear and convincing evidence that Fortes is guilty of oppression, fraud, or malice. He only needs to allege facts supporting the claim (*Monge, supra*, 176 Cal.App.3d 503, 510; *Perkins, supra*, 117 Cal.App.3d 1, 6-7), which Plaintiff does by alleging that Fortes, acting within the course and scope of his employment with Redwood, committed an unprovoked physical attack and assault against Plaintiff, causing significant harm. Plaintiff is also alleging before contact, that Fortes threatened to touch and/or grab Plaintiff in a harmful manner. These allegations, taken as true for purposes of this motion, are more than sufficient to support a claim for punitive damages against Fortes. (See Compl., at ¶¶ 8, 9, 13, 15, 16, 18, 19, 21, 22, 25, 27, 28, 31.) For example, "malice" means conduct which is intended by the defendant to cause injury to the plaintiff. (Civ. Code, § 3294, subd. (c)(1).)

Therefore, the Court DENIES Defendant Fortes' Motion to Strike because the allegations in the Complaint are sufficient to support a claim for punitive damages at the pleading stage.

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CIVSB2534194

Goshay vs WM Inland Investors IV et al

TENTATIVE RULING(S):

Defendant WM Inland's motion to strike punitive damage allegations

Motion is Granted. This motion is granted without prejudice to Plaintiff's ability to re-assert a claim for punitive damages should facts developed during discovery that warrants imposition of punitive damages.

The following are stricken from Plaintiff's Complaint: Paragraphs 10, 30, 31, 32, 33, 34, 35 and Prayer for Punitive Damages on page 10.

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CIVSB2410841

Bitterlich vs Home Depot

TENTATIVE RULING(S):

Plaintiff's Motion for Sanctions against Defendant Home Depot, USA Inc.

After getting no response from defense counsel regarding available dates for Home Depot's PMK deposition, Plaintiff set the PMK's deposition for April 10, 2026. Two days before the set date, Home Depot served untimely objections and stated that neither its Counsel nor PMK would appear for the deposition. At the set deposition date and time, Defense Counsel and Home Depot PMK failed to appear. A Certificate of Non-Appearance was taken. (Ulyshen Decl. at ¶¶5-9, Exhs. 2-5.)

Plaintiff Bittlerlich now moves for sanctions to recover the court reporter cost and counsel's time to meet and confer and file this motion. Defendant Home Depot opposes. Plaintiff Bittlerlich replies.

The Court finds the lack of response from defense counsel regarding a simple housekeeping matter of providing mutually available dates for a deposition troubling and unacceptable. This Motion could and should have been avoided.

Ruling

Having considered all the submitted papers from counsel, the Court GRANTS Plaintiff's Motion in its entirety and issues sanctions against Defendant Home Depot USA Inc. and its counsel for record, the law firm of Ivie, McNeill, et al, jointly and severally, the amount of \$3,148.35, payable to Plaintiff's counsel for record, payable on or before June 22, 2026.